

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 34
JUDICIAL OFFICER: LEONARD E MARQUEZ
HEARING DATE: 08/03/2026

INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN
DEPARTMENT 34

The tentative ruling will become the ruling of the Court unless by 4:00PM of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 34 (Dept34@contracosta.courts.ca.gov) to request argument and must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00PM of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER
NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

[https://contracosta-courts-
ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWIJCdHhldz09](https://contracosta-courts-ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWIJCdHhldz09)

Meeting ID: 161 108 5023
Passcode: 869677

Law & Motion

1. 9:00 AM CASE NUMBER: C24-01454
CASE NAME: MICHAEL CARLSON VS. TOPANGA DRIVE L.P.
***HEARING ON MOTION IN RE: FOR ATTORNEY'S FEES**
FILED BY: CARLSON, MICHAEL
TENTATIVE RULING:

Plaintiffs Michael Carlson and Sylvia Manzo ("Plaintiffs") filed a Motion for Attorney's Fees on March 19, 2026 (the "Motion for Attorney's Fees"). The Motion for Attorney's Fees was set for hearing on August 3, 2026 in Department 34.

The motion is opposed.

Background

Defendant Clovis Management, Inc. ("Defendant") filed an ex parte application on March 11, 2026 seeking entry of a judgment for possession against Plaintiffs pursuant to a settlement agreement and stipulation for entry of judgment. See Order entered March 13, 2026 (the "March 13, 2026 Order").

That application was denied. March 13, 2026 Order, ¶6. Plaintiffs now seek an award of attorneys' fees incurred to oppose the application.

The Motion for Attorney's Fees is supported by the Declaration of Andrew Wolff filed March 19, 2026 (the "Wolff Decl.") and the Declaration of Duncan McGee Nefcy filed March 19, 2026 (the "Nefcy Decl.") (collectively, the "Supporting Declarations").

The Supporting Declarations include summaries of the legal services rendered and expenses incurred in the litigation of the matter. See Wolff Decl., ¶7-11 (5.375 hours at \$1,000 for \$5,375 in fees) and Nefcy Decl., ¶10 (13.625 hours at \$500 for \$6,812.50 in fees). The fees sought total \$12,187.50, representing a total of 19 hours. *Id.* The Court notes that no billings statements were attached to the moving papers.

In addition, six additional hours were anticipated to be incurred in connection with further proceedings on the motion. No further supplemental declaration has been filed to date.

No costs are sought by the motion.

Opposition papers were filed on July 21, 2026 by Defendant.

Requests for Judicial Notice

On July 21, 2026, Defendant filed a request for judicial notice in connection with the Opposition (the "Defendant's RJN"). The Defendant's RJN requests that the Court take judicial notice of a Declaration of Linda Dunn dated March 11, 2026 (under Case No. 24CV104930) (the "March 11, 2026 Dunn Declaration").

It appears that Defendant makes such request in connection with arguments in its Opposition brief about the timing of communications about the payment at issue. See Opposition, p. 3., ln. 17 *et seq.* ("Plaintiffs' counsel inquired about the initial payment on February 23 at 11:27am,...").

Defendant fails to properly cite to the declaration to which the Opposition refers. The citation in the Opposition fails to reference the declaration being attached to the JRN. Nor does the citation even provide the date of filing of the referenced declaration. See *id.* at p. 3, lns. 18-19 ["(See Dec. of Linda Dunn)."]. This is particularly confusing because another declaration was filed by Ms. Dunn with the Opposition papers.

Nonetheless, assuming the reference is to the proffered declaration attached to the JRN—as it appears to be—the request is improper. The Court cannot take judicial notice of the declaration for purpose of considering factual averments about communications regarding the payment or similar factual matters. The Court may, in its discretion, take judicial notice of court records. Evid. Code § 452(d); *Kilroy v. State of California* (2004) 119 Cal.App.4th 140, 145. While courts are free to take judicial notice of the existence of documents in a court file, they may not take judicial notice of the truth of statements in filed pleadings such as declarations or other documents which are reasonably subject to dispute and therefore require formal proof. *Kilroy v. State of California, supra*, 119 Cal.App.4th at 145; see generally, Simmons, *California Evidence Manual* (2026 Edition) § 7:12.

Accordingly, Defendant's RJN seeking judicial notice of the March 11, 2026 Dunn Declaration is **DENIED**.

Plaintiffs also filed a request for judicial notice in connection with the moving papers (the "Plaintiffs' RJN"). This request seeks judicial notice of the March 13, 2026 Order and the underlying ex parte application. Plaintiffs' RJN is **DENIED**. The Court is familiar with its docket in this case and need not resort to judicial notice to be aware of prior orders made or the history of pleadings filed in the case.

Analysis

The Plaintiffs seek an award of attorneys' fees pursuant to a governing settlement agreement reached between the parties. See Wolff Decl., ¶2 and **Exhibit A** thereto (the "Settlement Agreement").

Paragraph 4 of the Settlement Agreement contains a prevailing party attorneys' fees provision:

4. Attorneys' Fees

a) Each party hereto shall bear its own attorneys' fees and costs arising from the actions of its own counsel in connection with the subject matter described herein and incurred prior to the date of execution of the Settlement Agreement.

b) In any action of any kind relating to the enforcement of this Settlement Agreement, the prevailing party shall be entitled to collect reasonable attorneys' fees and costs from the non-prevailing party in addition to any other recovery to which the prevailing party is entitled.

See Settlement Agreement, ¶4, Wolff Decl., **Exhibit A**. Among other things, the provision applies to "any action of any kind relating to the enforcement" of the Settlement Agreement. *Id.* at ¶4(b).

A trial court has broad authority to determine the amount of reasonable attorneys' fees. *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095; see CJER, *California Judges Benchbook: Civil Proceedings—Trial* (2025) ("CJER Civ. Pro.—Trial"), § 16.83. The fee setting inquiry ordinarily begins with the "lodestar," i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. *PLCM Group, Inc. v. Drexler, supra*, 22 Cal.4th at 1095. California courts have consistently held that a computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate attorneys' fee award. *Id.* The reasonable hourly rate is that prevailing in the community for similar work. *Id.* The lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided. *Id.* The trial court makes its determination after consideration of a number of factors, including the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given, the success or failure, and other circumstances in the case. *Id.* at 1096.

The Court has reviewed the stated hours and the nature of the legal work described in the Supporting Declarations. The Court has given due consideration to its own familiarity with the nature and extent of the prior ex parte proceedings as well as all other information provided by all parties as to the nature and necessity of the claimed hours for legal services. The Court has considered the hourly rates by timekeeper for such work and the number of hours reasonably expended by such timekeepers. The Court has also otherwise considered the hours sought and charges therefor in view of all of the relevant factors, as noted above.

The Court finds the 19.0 hours billed and the total claimed fees of \$12,187.50 to be excessive.

In particular, the Court does not find the following items were reasonable and concludes that the items should be reduced, in light of the nature of the work described and in view of the totality of the fees claimed:

\$500.00 Timekeeper, Duncan McGee Nefcy (see Nefcy Decl.):

- 1.25 hours reduced to .5 hours ["one and one quarter (1.25) of an hour reviewing Defendant's ex parte application"] for reduction of 0.75 hours

- 4.0 hours reduced to 0.5 hours [“four (4) hours conducting legal research on entitlement to attorney’s fees pursuant to contract and the reasonableness of hourly rates under the Laffey Matrix”] for reduction of 3.5 hours

- 1.0 hour reduced to 0.3 hours [“one (1) hour drafting the request for judicial notice”] for reduction of 0.7 hours

Those reductions total 4.95 hours, leaving a balance of 8.675 hours (\$4,337.50 at the \$500.00 timekeeper rate).

\$1,000.00 Timekeeper, Andrew Wolff (see Wolff Decl.):

The Court finds that the described 5.375 hours described to be reasonable in scope and for the nature of the work described. However, the Court does not find the \$1,000 an hour reasonable and justified for the work described, especially as relates to essentially supervisory work on a routine motion for fees. The Court will reduce the hourly rate for these hours to \$500.00 per hour. 5.375 hours at \$500.00 per hour equals \$2,687.50. In making this reduction, the Court is also mindful of the outcome achieved which was successful on Plaintiffs’ part, but also partially limited in that the Court ordered further meet and confer to resolve the issue to which both sides contributed causing in the first place.

Total Awarded

The total amount awarded for attorneys’ fees and costs is **\$7,025.00** (\$4,337.50 plus \$2,687.50). The Court finds those hours and fees to be reasonable and necessary to the conduct of the litigation.

Disposition

The Court finds and orders as follows:

1. The Motion for Attorney’s Fees is GRANTED.
2. The Plaintiffs are awarded and shall recover from Defendant attorneys’ fees in the sum of **\$7,025.00**.
3. The moving party shall prepare and submit the order after hearing.

2. 9:00 AM CASE NUMBER: C24-02209
CASE NAME: PATRICK MORRISSEY VS. ALBERT SEBILIA
HEARING ON SUMMARY MOTION BY CHRISTOPHER ROBERTS AND COURTLY STEVENS
FILED BY:
TENTATIVE RULING:

On its own motion, the Court continues this hearing to **August 17, 2026** at **9:00 a.m.** in **Department 34**.